

- (1) Bradley Carneghi of Carneghi-Nakasako & Associates is appointed as appraiser of the Subject Property;
- (2) The Defendant may elect to buy all of the plaintiff's 25% interest of the Subject Property and the defendant will be entitled to offset for maintenance and taxes of the Subject Property for the plaintiff's 25% portion of \$53,936.84; and
- (3) The offset amount for maintenance and taxes of \$53,936.84 shall be deducted for plaintiff's share if the Subject Property is sold.

The Court DENIES without prejudice the defendant's request to credit the money judgment acquired against the plaintiff at this time.

The matter will return on September 29, 2026 at 9:00 a.m. in Department 1 for hearing on valuation and providing notice to the parties of the value. The Court will prepare the formal Order.

Calendar Line # 5
Case Name Itria Ventures LLC et al vs Shivendra Basnet et al
Case No. 24CV448023

Motion for Attorneys' Fees and Costs

I. BACKGROUND

This case stems from a breach of written contract and breach of written guaranty, the Complaint was filed on September 24, 2024. On July 29, 2025, the court granted the Plaintiff Itria Ventures LLC ("Itria")'s motion for summary judgment. On August 27, 2025, there was an entry of judgment in the amount of \$408,164.80 in favor of the plaintiff. On September 5, 2025, there a notice of entry of judgment was entered.

On October 22, 2025, Plaintiff Itria Ventures LLC ("Itria") filed this motion for attorney's fees and cost. The motion was accompanied by a proof of service indicating mail and electronic mail service to defense counsel on that same day. The plaintiff seeks a total of \$12,141.51 comprised of attorney's fees in the amount of \$10,420.00 and costs in the amount of \$1,721.51.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following moving papers: notice of plaintiff's motion; memorandum of points and authorities; Declaration of Jason S. Takenouchi in support of the motion and attached Exhibits A-B (totaling 40 pages); proof of service and the pleadings.

II. LEGAL STANDARD

A. TIMELINESS

Pursuant to California Rule of Court 3.1702, a fee motion "must be served and filed within the time for filing a notice of appeal under Rules 8.104 and 8.108 in an unlimited civil case . . ." (Rule 3.1702(b)(1)). Under Rule 8.104(a)(1), the "deadline ordinarily falls 60 days after notice of entry of judgment, or 180 days after entry of judgment, whichever is first." (*Kaufman v. Diskeeper Corp.* (2014) 229 Cal.App.4th 1, 8). "The language of the

rule thus applies only to a motion to recover all prejudgment attorney fees incurred in an action, and contemplates the filing of such a motion at the conclusion of the lawsuit.” (*Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454, 463).

There is a long history of caselaw pointing toward settlements serving as “judgments.” (*See DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155 [“As between the parties thereto and for purposes of enforcement of settlement agreements, a compromise agreement contemplating payment by defendant and dismissal of the action by plaintiff is the legal equivalent of a judgment in plaintiff’s favor.”] italics added, citing (*Goodstein v. Bank of San Pedro* (1994) 27 Cal.App.4th 899, 907 907, italics added; *see also Madrigal v. Hyundai Motor America* (2023) 90 Cal.App.5th 385, 399-403)).

B. PREVAILING PARTY

Pursuant to Code of Civil Procedure section 1032(b), “[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” “‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Code Civ. Proc., § 1032(a)(4)). Costs recoverable under section 1032 are restricted to those that are both reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc., §§ 1033.5(c)(2), (3)). Costs “merely convenient or beneficial” to the preparation of a case are disallowed. (Code Civ. Proc., § 1033.5 (c)(2); *see Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (*Ladas*) [expenses for local travel and attorney meals are not reasonably necessary]).

C. REASONABLE ATTORNEY FEES & COST

The attorney fee award should cover “all the hours reasonably spent” by the prevailing party’s attorneys. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, italics omitted; *Serrano v. Unruh* (1982) 32 Cal.3d 621, 624, 639). Fees are calculated using the lodestar method, i.e., “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095-1096). “It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623). In exercising its discretion, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Ibid.*).

In determining what constitutes a reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the court may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorneys’ efforts, their learning, their age, and their experience in the particular type of work demanded the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Stokus v. Marsh* (1990) 217 Cal.App.3d 647, 657 (*Stokus*)).

In determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. “Fundamental to its determination . . . [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney . . . in the presentation of the case.” (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48 (*Serrano III*)). A reasonable hourly rate must reflect the skill and experience of the attorney. (*Id.* at 49). “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635 (*Serrano IV*); *see also Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587 (“The trial court could make its

own evaluation of the reasonable worth of the work done in light of the nature of the case, and of the credibility of counsel's declaration unsubstantiated by time records and billing statements."").

Reasonable attorney fees should be based on an objective standard of reasonableness, i.e., the market value of services rendered, not on some notion of cost incurred. (*PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1090). The value of legal services performed in a case is a matter in which the trial court has its own expertise. (*Id.* at 1096). The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Ibid.*). The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. (*Ibid.*).

III. ANALYSIS

Here, the entry of judgment was entered on August 27, 2025 and the notice of entry of judgment was filed on September 5, 2025. Plaintiff filed this motion on October 22, 2025, which 56 days from the entry of judgment and 47 days from the entry of judgment. Thus, the Court finds the motion as timely.

The Judgment authorized by the Honorable Shella Deen notes that the court granted plaintiff's motion for summary adjudication as to the plaintiff's third through sixth cause of action and noted that the plaintiff dismissed the first and second causes of action in the Complaint without prejudice. (Judgment, at p. 2). The Honorable Deen ordered that judgment be entered for plaintiff Itria against defendants The Everest Momo LLC and Shivendra Bahadur Basnet, an individual, jointly, and severally, in the amount of \$408,164.80 plus attorney's fees, interest, and costs. (*Id.*).

Plaintiff seeks \$12,141.51 comprised of \$10,420 in attorneys' fees and costs \$1,721.51. (Motion, at p. 3-5). Plaintiff seeks 38.1 hours of time expended by plaintiff's counsel and staff since March 24, 2025 to the present for reviewing and analyzing client-provided documents, drafting a complaint, coordinating service attempts, drafting a motion for summary judgment, supporting declarations, proposed final judgment, and drafting the motion. (Motion, at p. 3-7). Plaintiff asserts that three separate attorneys: Jason S. Takenouchi, Helen Y. Chang, and Ross G. Shank worked on the matter. (*Id.*, at p. 6). Attorney Takenouchi attests to spending 1.3 hours at \$300.00 per hour; Attorney Chang spent 25 hours at the hourly rate of \$275.00; and Attorney spent 10.6 hours at the hourly rate of \$275.00. Paralegal Jamila A.M. Folkes spent 1.2 hours at an hourly rate of \$200.00 on the matter. (*Id.*; Exhibit 1).

Upon review of the requested fees, the Court finds and awards reasonable attorney's fees and reduces the hourly rates as follows: 1.3 at \$300 for Attorney Takenouchi; 19.3 hours at the hourly rate of \$275.00; and 3.9 hours at the hourly rate of \$275.00. Paralegal rates are awarded for a total of 0.7 hours at the hourly rate of \$200.00. The total amount awarded is \$6,910.00.

Costs are established by a memorandum of costs for filing and motion fees, deposition costs, and electronic filing and serve fees. (Memorandum of Costs). The Court finds the costs reasonable grants costs in the amount of \$1,721.51.

No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, the Court GRANTS the plaintiff's request for attorney's fees and costs. Attorneys' fees is

awarded in the amount of \$6,910.00 and costs are awarded in the amount of \$1,721.51 for a total of \$8,631.51. The Court will prepare the formal Order.

Calendar Line # 6

Case Name Anson Vasquez vs Tyler Stayskal et al

Case No. 24CV451194

Motion to Compel Responses to Form Interrogatories and Request for Production of Documents, Set One; and Sanctions

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a motor-vehicle accident that occurred on or around September 15, 2023. On November 7, 2024, Plaintiff Anson Vasquez (“Vasquez”) filed a Complaint against Defendants Tyler Stayskal and Michelle Tedford (collectively “Defendants”) for motor vehicle accident resulting in personal and property damages, and also sought punitive damages. (Complaint). Defendants filed an Answer on September 30, 2025.

B. RELEVANT PROCEDURAL BACKGROUND

On September 30, 2025, Defendants propounded initial written discovery including form interrogatories (“FROG”), set one, and Request for Production of Documents (“RFPD”), on Plaintiff Vasquez via electronic mail. (Declaration of Ryan, at p. 2; Exhibit A). Defendants asserts that responses were due on November 4, 2025. (*Id.*). On November 13, 2025, defense counsel sent the plaintiff a meet-and-confer letter setting forth that no responses were served and that if no discovery responses were received within ten days, the defendants would seek a motion to compel and sanctions. (*Id.*; Exhibit B).

On December 10, 2025, Defendants filed this present motion to compel FROGs and SPROGS, set one, and sanctions. The motion was accompanied by a proof of service indicating electronic service on the plaintiff on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Per the defendants most recent case management statement dated July 10, 2026, in section 16(c), the defendants stated that the defendants are still awaiting discovery responses.

The Court has carefully reviewed the Defendants moving papers including a notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 5 pages); Declaration of Williams Ryan in support of the defendant’s moving papers with Exhibits A-B attached (totaling 19 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, §